

Constitutional Development in British India (1928–1935)

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Introduction

The constitutional development of British India was a gradual process through which the British government introduced various political and administrative reforms in response to growing demands for self-government and greater participation of Indians in the administration of the country.

The period from **1928 to 1935** was particularly important in the constitutional history of British India. During this period, several major developments took place, including the **Simon Commission, Nehru Report, Jinnah's Fourteen Points, Round Table Conferences, Communal Award, and the Government of India Act 1935**.

These developments were important because they brought the political differences between the **Indian National Congress and the All-India Muslim League** into sharper focus, particularly on the questions of representation, separate electorates, provincial autonomy, federalism, and minority safeguards.

1. Simon Commission (1927–1930)

What was the Simon Commission?

The **Simon Commission**, officially known as the **Indian Statutory Commission**, was appointed by the British Government in **1927**.

It was headed by **Sir John Simon** and consisted of seven members. All of its members were British; **there was no Indian member** on the Commission.

Purpose of the Commission

The main purpose of the Simon Commission was to:

- Review the working of the **Government of India Act 1919**.
- Examine the progress of constitutional reforms in India.
- Consider further constitutional reforms.
- Make recommendations regarding India's future constitutional system.

The Commission arrived in India in **1928**.

Why was the Simon Commission opposed?

The major reason for opposition was that **no Indian was included in the Commission**.

Indian political leaders argued that a commission investigating India's constitutional future should include Indian representatives.

The Indian National Congress strongly opposed the Commission, and demonstrations were organized in different cities.

The famous slogan during the protests was:

"Simon Go Back!"

Lala Lajpat Rai and the Simon Commission

One of the most important incidents occurred in **Lahore**.

Lala Lajpat Rai led a protest against the Simon Commission. During the demonstration, the police used force against the protesters.

Lala Lajpat Rai was seriously injured and died later.

His death further intensified opposition to British rule.

Importance of the Simon Commission

The Simon Commission played an important role in stimulating political discussion about India's constitutional future.

Its arrival created pressure on Indian political leaders to formulate their own constitutional proposals.

This situation eventually led to the preparation of the **Nehru Report in 1928**.

2. Nehru Report 1928

What was the Nehru Report?

In 1928, an **All Parties Conference** appointed a committee to prepare a constitutional framework for India.

The committee was headed by **Motilal Nehru**.

The report prepared by this committee became known as the:

Nehru Report 1928

It was one of the first major attempts by Indian political leaders to formulate their own constitutional proposals.

Main Features of the Nehru Report

1. Dominion Status

The report proposed **Dominion Status** for India.

Under Dominion Status, India would have considerable internal self-government while remaining constitutionally connected with the British Empire.

2. Parliamentary Form of Government

The report proposed a parliamentary system of government.

The executive would be responsible to the legislature.

3. Fundamental Rights

The report included provisions relating to fundamental rights and civil liberties.

These included principles concerning:

- Equality before law
- Freedom of religion
- Freedom of expression
- Protection of individual rights

4. Joint Electorates

One of the most controversial recommendations was the proposal for:

Joint Electorates

Under a joint electorate system, members of different communities would vote in the same electoral constituencies.

This differed from the Muslim League's demand for the continuation of **separate electorates**.

5. Federal Structure

The report proposed a federal form of government with powers distributed between the centre and the provinces.

Muslim Response to the Nehru Report

The Nehru Report was not acceptable to a large section of Muslim political leadership.

Muslim leaders were particularly concerned about:

- Joint electorates
- Muslim representation at the centre
- Provincial autonomy
- Protection of Muslim political interests
- Constitutional safeguards for minorities

Muhammad Ali Jinnah attempted to reach an agreement with other political leaders, but the differences remained unresolved.

As a response to the constitutional proposals, Jinnah presented his famous:

Fourteen Points

3. Jinnah's Fourteen Points – 1929

Muhammad Ali Jinnah presented his **Fourteen Points in 1929**.

The purpose of these points was to safeguard the political, religious, cultural, and constitutional rights of Muslims in the future constitutional system of India.

The Fourteen Points became an important constitutional document for the Muslim League.

Main Points of Jinnah's Fourteen Points

1. Federal Constitution

India should have a **federal constitution**, and the provinces should have substantial autonomy.

2. Provincial Autonomy

All provinces should enjoy adequate and uniform autonomy.

3. Representation of Minorities

Minorities should receive adequate representation in the provincial legislatures.

However, no province should be reduced to a minority or placed in a position of equality with its existing majority.

4. Muslim Representation at the Centre

Muslims should have at least **one-third representation in the Central Legislature**.

5. Separate Electorates

The system of **separate electorates** should continue.

6. Territorial Changes

No territorial redistribution should adversely affect the political interests of Muslims.

7. Religious Liberty

All communities should enjoy complete freedom of:

- Religion
- Belief
- Worship
- Religious practice
- Propagation

8. Protection of Communal Interests

No bill or resolution should be passed if three-fourths of the members of a particular community in a legislature considered it harmful to their interests.

9. Separation of Sindh

Sindh should be separated from the Bombay Presidency.

10. Constitutional Reforms in NWFP and Balochistan

Constitutional reforms should be introduced in **North-West Frontier Province and Balochistan** on the same basis as in other provinces.

11. Muslim Share in Government Services

Muslims should receive an adequate share in government services and other state institutions.

12. Protection of Muslim Culture

Adequate safeguards should be provided for Muslim:

- Religion
- Culture
- Education
- Language
- Personal laws
- Charitable institutions

13. Muslim Representation in Cabinets

Muslims should have an adequate share in the Central and Provincial Cabinets.

14. Constitutional Amendments

No fundamental constitutional change should be made without the consent of the constituent units of the federation.

Importance of Jinnah's Fourteen Points

The Fourteen Points were important because they provided a systematic constitutional framework for Muslim political demands.

They emphasized:

- Federalism
- Provincial autonomy
- Separate electorates
- Muslim representation
- Religious freedom
- Cultural safeguards
- Protection of minority rights

The Fourteen Points therefore became an important reference point in subsequent constitutional negotiations.

4. Round Table Conferences (1930–1932)

The constitutional disagreements among Indian political groups could not be resolved through the earlier negotiations.

Therefore, the British Government organized a series of conferences in **London** to discuss the constitutional future of India.

These meetings are known as the:

Round Table Conferences

There were **three Round Table Conferences**.

Conference	Period
First Round Table Conference	1930–31
Second Round Table Conference	1931
Third Round Table Conference	1932

First Round Table Conference – 1930–31

The First Round Table Conference was held in London from **November 1930 to January 1931**.

The **Indian National Congress did not participate** in this conference.

Representatives of different political, religious, and social groups participated.

Major issues discussed

The conference discussed:

- Federal structure
- Provincial autonomy
- Minority rights
- Representation
- Constitutional reforms
- The relationship between British India and princely states

The conference supported the general idea of a **federal structure**, but major constitutional issues remained unresolved.

Second Round Table Conference – 1931

The Second Round Table Conference was held in 1931.

This conference was particularly important because **Mahatma Gandhi represented the Indian National Congress**.

Major issues included:

- Constitutional structure
- Minority representation
- Electoral arrangements
- Federalism
- Political safeguards

However, the conference failed to produce a comprehensive agreement among the different political groups.

One of the major difficulties was disagreement over the political representation of different communities.

Third Round Table Conference – 1932

The Third Round Table Conference was held in 1932.

The Indian National Congress did not participate in this conference.

The conference continued discussions regarding India's constitutional structure.

The discussions eventually contributed to the development of the constitutional proposals that led to the **Government of India Act 1935**.

5. Communal Award 1932

What was the Communal Award?

In **1932**, British Prime Minister **Ramsay MacDonald** announced the **Communal Award**.

Its main purpose was to determine the system of political representation for different religious and social communities in British India.

Main Features

The Communal Award provided or continued separate representation for several communities, including:

- Muslims
- Sikhs
- Indian Christians
- Anglo-Indians
- Europeans
- Depressed Classes

The Award dealt mainly with:

- Electoral representation
- Separate electorates
- Allocation of seats
- Political safeguards for communities

Communal Award and Muslims

For Muslims, an important feature was the continuation of **separate electorates**.

This was significant because separate electorates had already become an important part of Muslim constitutional demands.

The Muslim League generally viewed political safeguards and separate representation as important mechanisms for protecting Muslim political interests.

Communal Award and Gandhi

The Communal Award also created controversy over the political representation of the **Depressed Classes**.

Mahatma Gandhi opposed the provision for separate electorates for the Depressed Classes and undertook a fast while in prison.

This controversy eventually resulted in the:

Poona Pact of 1932

between Gandhi and Dr. B. R. Ambedkar.

The Poona Pact modified the electoral arrangements for the Depressed Classes.

Importance of the Communal Award

The Communal Award was important because it:

1. Addressed the problem of minority representation.
2. Continued separate electorates for several communities.
3. Influenced the constitutional structure that followed.
4. Demonstrated the difficulty of creating a political system acceptable to all communities in India.

6. Government of India Act 1935

Now we come to one of the most important constitutional developments of British India.

Government of India Act 1935

The **Government of India Act 1935** was the most extensive constitutional legislation introduced by the British Parliament for British India before independence.

It attempted to introduce a new constitutional framework for India.

The Act contained a large number of provisions concerning:

- Federal government
- Provincial government
- Legislative institutions
- Elections
- Distribution of powers
- Administrative arrangements

Main Features of the Government of India Act 1935

1. Federal Scheme

The Act proposed the establishment of an:

All-India Federation

The proposed federation was to consist of:

- British Indian provinces
- Princely states

However, the federal part of the Act was **never implemented**, largely because the required participation of princely states was not secured.

2. Provincial Autonomy

One of the most important features of the Act was:

Provincial Autonomy

The provinces received greater control over their own affairs.

The provincial executive became more responsible to elected legislatures.

3. Abolition of Dyarchy in Provinces

The Government of India Act 1919 had introduced **Dyarchy in the provinces**.

Under dyarchy, provincial subjects were divided into:

Reserved Subjects

These remained under the control of the Governor.

Transferred Subjects

These were administered by ministers responsible to the legislature.

The Government of India Act 1935 **abolished dyarchy in the provinces.**

4. Dyarchy at the Centre

Interestingly, the Act proposed the introduction of **dyarchy at the central level.**

However, because the federal part of the Act was never implemented, central dyarchy did not operate in practice.

5. Bicameral Legislature at the Centre

The proposed federal legislature consisted of two chambers:

Federal Assembly and Council of State

This was part of the proposed federal structure.

Since the federation itself was not implemented, this central federal legislature did not operate as originally planned.

6. Provincial Legislatures

The Act provided for provincial legislatures with greater legislative powers.

Some provinces were given **bicameral legislatures**, while others had unicameral legislatures.

7. Expansion of Franchise

The Act significantly expanded the electorate.

However:

It did not introduce universal adult franchise.

Voting rights remained subject to qualifications such as property, income, education, and other conditions.

8. Distribution of Legislative Powers

The Act provided for the distribution of legislative powers between the centre and provinces.

The subjects were divided into:

1. **Federal List**
2. **Provincial List**
3. **Concurrent List**

This division was designed to establish a federal constitutional structure.

9. Federal Court

The Act provided for the establishment of a:

Federal Court of India

The Federal Court was established in **1937.**

It dealt with certain constitutional and federal legal matters and became an important institution in the development of India's judicial system.

10. Powers of Governors

Although provincial autonomy was introduced, provincial Governors retained significant powers.

They had certain:

- Discretionary powers
- Special responsibilities
- Constitutional powers

Therefore, provincial autonomy under the 1935 Act was **limited rather than complete**.

11. Elections of 1937

The Government of India Act 1935 provided the constitutional framework for the **provincial elections of 1937**.

These elections were extremely important because they provided an opportunity for Indian political parties to participate in provincial government on a much larger scale.

The **Indian National Congress formed governments in several provinces**, while the Muslim League's electoral performance varied considerably from province to province.

The political experience of **1937–1939** subsequently became an important phase in the development of Muslim League politics and the constitutional debate in India.

7. Overall Constitutional Development: 1928–1935

The constitutional developments of this period can be understood through the following sequence:

Simon Commission

1927–30

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Nehru Report

1928

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Jinnah's Fourteen Points

1929

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First Round Table Conference

1930–31

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Second Round Table Conference

1931

↓

Third Round Table Conference

1932



Communal Award

1932



Government of India Act

1935



Provincial Elections

1937

This sequence shows the gradual development of constitutional politics in British India.

8. Major Constitutional Issues

Throughout this period, several major questions remained at the centre of political debate.

1. Federalism

Should India have a federal structure?

2. Provincial Autonomy

How much power should the provinces have?

3. Minority Representation

How could the political interests of minorities be protected?

4. Separate vs Joint Electorates

Should different communities elect their representatives separately or through a common electoral system?

5. Muslim Representation

What level of representation should Muslims receive in the central and provincial legislatures?

6. Religious and Cultural Rights

How could the religious, cultural, educational, and personal-law interests of different communities be protected?

These questions remained central to the constitutional debate until the partition of British India in 1947.

9. Comparative Overview

Development	Year	Main Significance
Simon Commission	1927–30	Review of constitutional reforms
Nehru Report	1928	Indian constitutional proposals
Jinnah's Fourteen Points	1929	Muslim constitutional demands
First Round Table Conference	1930–31	Constitutional negotiations
Second Round Table Conference	1931	Further constitutional negotiations
Third Round Table Conference	1932	Continued constitutional discussions
Communal Award	1932	Political representation of communities
Government of India Act	1935	Major constitutional framework

Development	Year	Main Significance
Provincial Elections	1937	Practical implementation of provincial autonomy

10. Important Terms

Dominion Status

A constitutional position in which a country enjoys substantial self-government while maintaining a constitutional relationship with the British Crown.

Separate Electorates

An electoral system in which members of a particular community elect their own representatives.

Joint Electorates

An electoral system in which voters from different communities participate in the same electoral constituencies.

Provincial Autonomy

The transfer of greater governmental authority to provincial governments.

Dyarchy

A system in which governmental subjects are divided between two authorities or categories of administration.

Federalism

A constitutional system in which governmental powers are divided between a central government and provincial/state governments.

Communal Representation

Political representation organized with consideration for different religious or social communities.